



DEPARTMENT OF THE NAVY
NAVAL SURFACE WARFARE CENTER
INDIAN HEAD DIVISION
3767 STRAUSS AVENUE
SUITE 201
INDIAN HEAD, MD 20640-5150

J&A No. 26-RFPREQ-E24-0007
Code: 022

JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

JUSTIFICATION

1. Contracting Activity.

The Naval Sea Systems Command, Naval Surface Warfare Center Indian Head Division (NSWC IHD), Contracts Office Code 02.

2. Description of the Action Being Approved.

This action seeks to award a follow-on sole-source contract for 1,100 CCU-189/B Impulse Cartridges (DODIC JP40) in support of EA-18G aircraft to Applied Energetic Technology Corp (AETC).

3. Description of Supplies/Services.

NSWC IHD requires a contract for fabrication, acceptance inspection, and delivery of JP40 impulse cartridges, with limited install life, for use in EA-18G aircraft and for additional testing for service life extension. The JP40 cartridge is a Hazards of Electromagnetic Radiation to Ordnance (HERO) Safe version of an existing cartridge used in the Fleet. The ignition element in the cartridge has been modified with a capacitor to make it HERO-Safe and allow aircraft to avoid flying at an At-Risk status. The Fleet requires delivery of these units no later than the end for calendar year 2026.

Estimated Dollar Value

	FY26 Total
PANMC	██████
PAN	██████
Total	\$750K

4. Statutory Authority Permitting Other Than Full and Open Competition.

10 U.S.C. 3204(a)(1), as implemented by FAR 6.103-1, Only one responsible source and no other supplies or services will satisfy agency requirements.

5. Rationale Justifying Use of Cited Statutory Authority.

AETC is the current and only source with the proven and currently validated manufacturing capabilities to produce the JP40 Impulse Cartridge that meets all government performance and safety requirements, including HERO-Safe standards, within the timeframe dictated by operational necessity. The purpose of this requirement is a follow-on contract for the continued

development and subsequent production of highly specialized items, therefore, in accordance with FAR RFO 6.103-1(c)(2), award to any other source would result in unacceptable delays in fulfilling the agency's requirement. The Department of War's mission readiness will be seriously compromised without the immediate procurement of HERO-Safe JP40 impulse cartridges for the EA-18G Fleet.

Any delay in the contracting and production schedule will prevent the Government from delivering mission-essential assets to the Fleet by the critical deadline and poses an unacceptable operational risk of grounding aircraft.

The fleet requires the DODIC JP40 cartridges by the end of calendar year 2026 to avoid flying "At-Risk" of inadvertent stores release or, more severely, ceasing flight operations entirely, which would directly compromise Fleet Readiness and the execution of critical operational missions. This requirement was requested to be expedited by the program office faster than anticipated and prior to the unit being completely qualified due to the Fleets immediate need of a HERO-Safe replacement of an existing component.

A competitive procurement process is not feasible within the required timeframe. Qualifying a new vendor would necessitate extensive and time-consuming validation, for tooling and manufacturing procedures, and testing including Non-Destructive, Environmental, and Ballistic Testing at Naval Surface Warfare Center, Indian Head Division (NSWC IHD). This essential testing and manufacturing process validation would unacceptably delay the procurement timeline by 9 months, assuming an idealized scenario with no manufacturing or procedural delays. This delay is unacceptable and directly conflicts with the agency's requirements. Furthermore, the estimated [REDACTED] cost for this additional testing and oversight is not expected to be recovered through competition.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

The synopsis of the proposed procurement was posted to SAM.gov on March 2, 2026, with a closing date of March 19, 2026. The Government did not receive responses to the Synopsis.

Market Research was conducted and based off the previously awarded contract for a similar item. Including other vendors in the solicitation increases the risk in manufacturing variability and output performance, which would hinder the Customers critical requirement of on-time delivery. This highly specialized equipment has nuanced manufacturing techniques with a steep learning curve that the sole source has previously demonstrated their capability of executing in a timely manner.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer has determined the anticipated cost to the Government of the supplies covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition.

For the reasons set forth in Paragraph 5, NSWC IHD has no plans at this time to compete future contracts for the types of supplies covered by this document. If another potential source emerges, NSWC IHD will assess whether competition for future requirements is feasible. As this is a follow-on for supplies and services previously awarded on a non-competitive basis, in accordance with DFARS PGI 206.304(a) (S-70(i), the prior justification was provided to the approval authority for review. Approval of this J&A signifies the approval authority has made the determination required by DFARS PGI 206.304(a) (S-70(ii).

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

Technical Cognizance:

[Redacted Signature and Name]

Signature Name (Printed) Phone No. Date

Requirements Cognizance:

[Redacted Signature and Name]

Signature Name (Printed) Phone No. Date

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

[Redacted Signature and Name]

Signature Name (Printed) Phone No. Date

APPROVING OFFICER

Upon the basis of the above justification, I hereby approve, as Contracting Officer the solicitation of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 3204 (a) (2) .

ALSTON.MAGGIE. Digitally signed by
CAROLINA.138427 ALSTON.MAGGIE.CAROLINA
Date: 2026.03.24 11:18:06 -04'00'

Signature Maggie Alston 301-744-6567 3/24/26
Name (Printed) Phone No. Date